

ORDINANCE NO. A 8

TOWN OF DECATUR, MISSISSIPPI

AN ORDINANCE PROHIBITING THE RAISING OR GROWING OF CHICKENS WITHIN THE CORPORATE LIMITS OF THE TOWN, OF DECATUR, MISSISSIPPI, FOR COMMERCIAL PURPOSES, OR THE RAISING OF HOGS OR SWINE WITHIN SAID TOWN FOR ANY PURPOSE.

WHEREAS, This Board finds that the raising or growing of chickens for commercial purposes, or the growing of hogs or swine for any purpose, within the corporate limits of the Town of Decatur, Mississippi, is detrimental to the health and safety of the residents and citizens of said Town, and

WHEREAS, the Board further finds that the raising or growing of chickens for commercial purposes, or hogs or Swine for any purpose, ordinarily and usually creates unsanitary and unhealthful conditions in the surrounding area where the same are grown, and causes foul and unpleasant odors to emanate from such areas where the same are grown, and

WHEREAS, this Board, after deliberate and careful consideration of this matter, and because of its lawful obligation and responsibility for the health, safety and welfare of the citizens, and residents of said Town of Decatur, is of the opinion that it would be to the best interest of said Town of Decatur, for an ordinance to be adopted, effective immediately, prohibiting the growing or raising of chickens or hogs as heretofore mentioned, now therefore,

BE IT ORDAINED BY THE MAYOR AND BOARD OF ALDERMEN OF THE TOWN OF DECATUR, MISSISSIPPI:

SECTION 1. That from and after the effective date of this ordinance, it shall be unlawful for any person or persons to grow or raise chickens within the corporate limits of the Town of Decatur, Mississippi, for commercial purposes.

SECTION 2. That from and after the effective date of this ordinance it shall be unlawful for any person or persons to grow or raise hogs or swine within the corporate limits of the said Town of Decatur for any purpose.

SECTION 3. Any person or persons violating this ordinance shall be guilty of a misdemeanor, and upon conviction thereof, each person so convicted, shall be subject to a fine not to exceed _____ Dollars (\$ _____), or by imprisonment not to exceed _____ days, or by both such fine and imprisonment.

SECTION 4. The Clerk of this Board shall post copies of this ordinance in not less than three public places in the Town of Decatur, Mississippi, for not less than one (1) week, it being hereby specifically found that there is no newspaper published in the Town of Decatur qualified to publish legal notices. In addition thereto the Clerk shall record this ordinance on the minutes of said Town and upon the Ordinance Book of said Town.

SECTION 5. That for the immediate preservation of the health, safety and welfare of the residents and citizens of the Town of Decatur, Mississippi, this ordinance shall take effect and be in force immediately upon the adoption hereof.

Passed and adopted at a special meeting of the Mayor and Board of Aldermen, by the unanimous vote of all the members of said Board, this the _____ day of _____, 1958.